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FEDERAL DEMOCRATIC REPUBLIC OF ETHIOPIA

Human Rights Developments

Ethiopia fought its former ally Eritrea in the world's deadliest war in 1999, over a border dispute that erupted in 1998. The war continued to have drastic humanitarian consequences, and contributed considerably to the worsening of an already dire human rights situation.

The government, led by the Ethiopian Peoples' Revolutionary Democratic Front (EPRDF) since the ouster of former dictator Mengistu Haile Meriam in 1991, announced national legislative elections for May 2000, the first since 1995. Voters would elect members of the two chambers of parliament from lists presented by some sixty registered political parties. The EPRDF, however, maintained strict control over Ethiopia's nine ethnically-defined federal states through regional ethnically-defined parties affiliated to it. Political groupings which sought to preserve their autonomy or to oppose the system of ethnic federalism enshrined in the 1995 constitution continued to face severe restrictions. The EPRDF ignored calls in late August by representatives of the All Amhara People's Organization (AAPO) and the Southern Peoples Union for greater say in organizing the elections. The opposition Council of Alternative Forces of Peace and Democracy in Ethiopia, and the Oromo National Congress publicly expressed fears that the government would deny them equal access to the state controlled mass media and the right to campaign without harassment.

The war with Eritrea contributed to a considerable worsening of the human rights and humanitarian situation in the country. An estimated forty to fifty thousands soldiers were believed to have been killed, wounded, or captured on both sides. Fierce fighting resumed in February 1999 after a lull that lasted from September which the two parties used to recruit and train about half a million conscripts and to rearm on the open market. Ethiopia recaptured the disputed "Badme triangle" that Eritrea had occupied in the first phase of the war.

By October 1999, civilians directly affected by the war in Ethiopia included, according to government figures, some 400,000 villagers displaced or evacuated from the border area. Some 41,000 Ethiopian nationals left Eritrea by October, many of them under duress: they said they were fleeing discrimination and feared for their own safety as the war intensified. Many also experienced severe war-related economic hardships in Eritrea. The International Committee of the Red Cross (ICRC) in Eritrea accompanied about half of the departures; the others having occurred before its involvement began in September 1998. Ethiopia initiated as of June 1998 a draconian program of roundups and deportations of those Eritreans and Ethiopians of Eritrean origin authorities deemed to be a threat to national security. Tens of thousands were affected. The acute humanitarian crisis resulting from the war was further compounded by intense drought conditions in the east and southeast of Ethiopia that threatened an estimated five million people with hunger in 1999. After an initial alarmingly slow response, donors by early October had pledged most of the emergency food aid needed to prevent starvation.

On July 5 and 6, Ethiopia deported another three thousand people of Eritrean origin, many of them children and elderly people. They arrived in Eritrea weakened by many days of detention and a rough road trip, and complaining of the confiscation of their properties. Their arrival signaled the resumption of the mass deportations which had slowed to a trickle since hostilities resumed in February and brought the number of deportees until then to 60,000.

The government in July held that it had a legal right to deport those Ethiopians of Eritrean origin who had voted in the 1993 referendum on the independence of Eritrea, and registered those who remained behind as aliens in August. It argued that under the Eritrean referendum proclamation only those who had opted for Eritrean citizenship were eligible to vote-although any such a choice would have been contingent upon, and meaningful, only after being ratified by each individual after Eritrea had gained its independence. With its own nationality law barring dual citizenship, the government declared that it therefore considered referendum voters to be foreigners. However, Ethiopian authorities failed to declare at the time of the referendum that participation in it would constitute a formal renunciation of Ethiopian nationality. Furthermore, many of the deportees were children and elderly persons who neither voted or conceivably posed credible security threats. The Ethiopian government's position also belied its own role in facilitating the referendum and endorsing its result. At the time of Eritrean independence, the two states and ruling fronts were the closest of allies. They focused on forging close technical, political, and security ties and accorded low priority to sensitive issues such as the demarcation of the border, and the nationality status of Ethiopians of Eritrean origin. The deportees who had in fact voted in the referendum, whether for or against independence, were being retroactively punished for an act that the Ethiopian government had at the time facilitated and encouraged. The judiciary appeared to have had no role in the deportation process. It reportedly provided no recourse to the victims to challenge their arrest and subsequent forcible deportation, to defend a claim to Ethiopian nationality, or to respond to the accusation of being national security threats. Incidents of torture or other deliberate physical harm during the deportations were limited in number, according to testimonies of the deportees. Ethiopia granted the ICRC regular access to Eritrean prisoners of war and hundreds of civilian internees.

As the war appeared heading to a costly deadlock, each party sought to outflank the other on the military and diplomatic fronts. Low-level insurgencies led for years by the Oromo Liberation Front (OLF) for self determination in Oromia region intensified in the wake of the war with Eritrea. Ethiopia accused Eritrea of arming and training new batches of OLF insurgents and sent troops backed by tanks into neighboring Somalia in May and June to flush them out, and to punish warlords suspected of giving them sanctuary. The intervention force also sought to dislodge the fundamentalist Al-Ittihad Al-Islami (Islamic Unity), which launched cross-border raids into southern Ethiopia from strongholds in Somalia. Ethiopian forces at the same time made several limited incursions into northeastern Kenya to tackle OLF elements that were operating there, leading to security tensions with that country as well. At the same time, the Ethiopian government made no secret of its encouragement of a new alliance among exiled Eritrean opposition groups aimed at toppling the Eritrean government. The sprawling war fronts highlighted the potential for the regionalization of the war. All parties in these conflicts admittedly made extensive use of antipersonnel landmines. Civilians were the main victims in the minefields that mushroomed across the entire region.

The government's efforts to suppress political dissent and armed insurgency led to widespread human rights abuses. The government continued to grant the ICRC access to places of detention and to cooperate with its efforts to assist the detainees. However, it continued to deny the humanitarian agency access to police lockups in the capital, particularly the cells of the Central Investigation Department from which reports of routine abuses of detained suspects continued to emanate. The ICRC reported assisting in 1998 at least 10,000 people imprisoned in connection with internal security matters and the 1991 change of regime. The trial of thousands held since the fall of the Mengistu regime for crimes associated with it were still pending in the capital and different states by year end, although most had been held for the last eight years awaiting the beginning of their trials. A few dozen former officers and air force pilots were, exceptionally, released on bail in August.

In late December 1998 the government authorized seventy-one-year-old Asrat Woldeyes, chairman of the opposition AAPO, to leave for medical treatment abroad. His health had steadily deteriorated during five years in jail following questionable convictions for political and security crimes. The government, however, had previously resisted pressing appeals from his supporters and the international community for his release on humanitarian grounds. He died on May 14 in a hospital in Philadelphia.

The court in mid-June sentenced to fifteen years imprisonment Taye Wolde Semayat, the former head of the Ethiopian Teachers' Association (ETA), for political and security crimes. The government

continued its drive to eliminate the independent ETA and promote in its place a pro-government teachers' union.

By mid year, ten journalists remained in prison, most of them since 1997. Two more were detained during the year. The arbitrary detention of journalists for writings and opinions the government did not approve of remained a potent tool of government control. Leaders of the Ethiopian Free Press Journalists' Association were forced into exile, and so were many other independent journalists who were repeatedly detained and punished with heavy fines for attempting to do their jobs.

Defending Human Rights

After eight years of obstruction, the government in early May officially registered the Ethiopian Human Rights Council (EHRCO), the only openly operating monitoring group in the country. EHRCO was also able to access its bank account, which the government had blocked during the preceding four years, but only after obtaining a court order for its release in January. The government continued to recognize several other organizations focusing on civic and human rights education. But the government continued to suppress the Human Rights League, a monitoring organization established in December 1996 by members of the Oromo community. Eight founding and board members of the league, and the organization's secretary, remained in detention for the second year after their arrest in October 1997. Like other Oromo detainees, they were charged with collaboration with the Oromo Liberation Front (OLF). Similar repressive measures forced other monitoring groups underground or into exile, including the Ogaden Human Rights Committee, the Solidarity Committee for Ethiopian Political Prisoners, and the Oromo Ex-Prisoners for Human Rights. Nonetheless, these groups continued to investigate human rights abuses on the ground and to publish their findings regularly.

Some fifty-five Oromo elders and leaders of cultural and social organizations of their community also remained in detention since late 1997. Court hearings of their cases on charges of conspiracy with the OLF were repeatedly adjourned, prolonging their exposure to cruel, inhuman, and degrading treatment in pretrial detention.

Ethiopian officials met with representatives of Human Rights Watch on several occasions during the year, but the government declined to grant its representatives the entry visas requested to conduct an on-site investigation of human rights observance in the context of the war. The government in October 1998 had authorized a monitoring mission by Amnesty International, but emphatically rejected its findings in official statements and reports in February and again in August.

The Legal Affairs Committee of the House of Peoples' Representatives published a draft document on the establishment of a Human Rights Commission and Office of the Ombudsman in three main local languages and distributed it to the public from April 27 to May 3 to encourage public participation in shaping the two national institutions. The committee said it wanted them established before the May 2000 elections.

The Role of the International Community

Ethiopia and Eritrea pursued the war relentlessly despite persistent and intensive truce efforts from the O.A.U., the U.N., the United States, and, to a lesser degree, the European Union, not to mention several bilateral initiatives. The political leadership in both countries appeared determined to obtain key strategic advantages on the battlefield before engaging in a meaningful search for peace. The pressures exerted on them appeared minimal compared to the massive diplomatic pressures that succeeded during the year in ending or averting other deadly conflicts in Kosovo, the Indian subcontinent, and East Timor.

Organization of African Unity (OAU)

The November 1998 OAU proposal of a framework agreement for a peaceful settlement of the war addressed the humanitarian problems resulting from the conflict by requiring signatories to put an end to measures directed against the civilian population and to refrain from any action which can cause further hardship and suffering to each other's nationals. The proposal would commit the two parties to addressing the war's negative socioeconomic impact on civilians, particularly the deportees. It called

for the deployment of human rights monitors by the O.A.U. in collaboration with the U.N. as a means to establish a climate of confidence between the two parties. Ethiopia accepted the plan immediately. Eritrea expressed reservations but finally accepted it after suffering battle field losses in late February. However, differences of interpretation of the proposed agreement kept the two parties at odds and continued to fuel the fighting.

The O.A.U. and other mediators used the lull in the fighting brought by the onset of the rainy season in July to intensify their efforts. This led to the introduction at the O.A.U.'s July summit in Algiers of "modalities" for the implementation of the framework agreement that sought to resolve the differences of interpretation and build confidence between the two parties. While both declared their acceptance of the "modalities," they continued to question each other's commitment to peace. Eritrea again raised the need for compensation of the deportees in its acceptance speech. Ethiopia considered this as an attempt to alter the substance of the modalities and threatened to resume fighting if Eritrea insisted on introducing "preconditions and amendments."

The O.A.U. in August presented the two countries with detailed "technical arrangements" for the implementation of the O.A.U.'s framework agreement and its modalities. Eritrea accepted the plan. Ethiopia first signaled its dissatisfaction with the details, and ultimately rejected some elements of the arrangements, a position that Eritrea considered was a "declaration of war." On September 13, President Negasso Gidada insisted that the war could only end with a return to the status quo ante that would require Eritrea's unconditional withdrawal from the disputed areas over which the Ethiopian president demanded the restoration of his country's sovereignty.

United Nations

The U.N. Security Council in a January 29 resolution affirmed that the O.A.U.'s framework agreement provided the "best hope" for peace. It urged Eritrea to accept the proposal, and called on both parties in the strongest terms to undertake urgent measures to improve the humanitarian and human rights situation. Ethiopia said it was "encouraged" by the resolution.

Despite the strong appeals, hostilities resumed only weeks later. The Security Council in a February 10 resolution demanded that Ethiopia and Eritrea stop fighting and that other states immediately end all arms sales to both sides. In response, the Ethiopian parliament passed a special resolution that expressed "its deep anger at the injustice done to Ethiopia" by the Security Council, and deplored "the attempt to deny Ethiopia, a victim of aggression...the right to self defense." The Eritrean government affirmed that, though it was committed not to start war, it reserved "the legitimate right to self defense in the face of aggression."

The president of the Security Council in a press statement on June 23 expressed dismay at the escalating conflict, especially that both countries were continuing to buy weapons while much of their populations faced famine. He reminded the two governments that it was their primary responsibility to feed their peoples and repeated the council's calls for "an immediate and unconditional cease-fire," and for the imposition of an arms embargo on both countries.

European Union

The E.U.'s presidency issued statements condemning the major outbreaks of fighting in February and June. Other statements released by the presidency almost monthly since November 1998 persistently expressed full support for the O.A.U.'s mediation effort, and repeatedly urged the parties to halt the war and to negotiate a peaceful settlement on the basis of the O.A.U.'s proposals. On March 9, the European Council of Ministers adopted a common position imposing an embargo on the export of arms, munitions, and military equipment to Ethiopia and Eritrea, and on September 30 extended that ban until March 31, 2000. An E.U. ministerial delegation traveled to Addis Ababa and to Asmara in February to push for a cease-fire and a return to the O.A.U.'s mediation process. The E.U. made substantial monetary and in kind donations for the relief of civilians affected by the conflict in both countries.

United States

War between Ethiopia and Eritrea, two of its closest allies in the continent, was deemed to pose serious threats to U.S. interests in the entire region and led to the most sustained high-level attention by the Clinton Administration of any conflict on the continent. The U.S. failed to match this active involvement in the mediation efforts by equally forceful human rights interventions and instead carried on with its prior practice of not criticizing either party for the rampant human rights abuses that took place in the context of the war.

The U.S. and other major donors had in the past extended significant resources to support political and economic development programs in the two countries. They were the lynchpins in the U.S.-led plans for the military and diplomatic containment of the government of Sudan, considered by the U.S. to be an exporter of radical Islam and a supporter of international terrorism. They appeared to play a key stabilizing role in the search for peace in east and central Africa. The war reversed all this. It drained the resources of the two countries, and effectively slowed down their economic growth rates.

Humanitarian emergencies and the looming famine added to the cost of the conflict. Sudan declared its neutrality in the conflict, and received immediate dividends as the two parties competed in normalizing their relations with its Islamist government and scaling back their support to its exiled opposition. The war spilled over into Kenya and threw Somalia into renewed fighting. Anthony Lake, the U.S. lead mediator as of October 1998 and a former national security advisor, shuttled between the two capitals several times, coordinating his efforts closely with the O.A.U. and the U.N. Experts from the three mediators worked closely together to finalize the most detailed and technical of the peace documents, the "technical arrangements" that Ethiopia ultimately rejected. Efforts during a late August visit to Addis Ababa by Lake and Susan Rice, the assistant secretary for African affairs at the State Department, to persuade the Ethiopian leaders to accept the arrangements appeared to have failed.

President Clinton expressed concern in January at the huge military buildup along the common border between Ethiopia and Eritrea. He again issued a statement expressing disappointment at the resumption of hostilities in February. On July 27, a presidential statement welcomed the announcement by the O.A.U. that the two parties had accepted the modalities for the implementation of its framework agreement.

The U.S. scaled back its direct financial assistance to both countries due to the war. It suspended its balance of payment support to Ethiopia and froze the training of Ethiopian troops within the U.S.-led peacekeeping training program under the African Crisis Response Initiative. However, Ethiopia continued to benefit from the International Military Education and Training (IMET), with the only limitation being that they could not receive training in their country but had to come to the U.S. In addition, \$2.9 million was provided out of the Frontline States initiative for the maintenance of two C130s, which were delivered just before the outbreak of hostilities. The sale of two other C130s which had not yet been delivered, remained on hold. U.S. development assistance to Ethiopia was not affected by the freeze. It totaled about \$43 million for fiscal year 1999, in addition to substantial food aid.

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